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r/neoliberal • 5y ago

FireDistinguishers



Congress 103: The Filibuster

Effortpost

Introduction

Filibuster. The word from the last post was filibuster. I'll give you a prize if you can prove you figured it out without cheating. (This is another lie.)

As always, this is a series of posts going through the operations of the United States Congress in an unfiltered, unedited, and unapologetic manner. Here are the links to the previous posts:

[Part 3](#) [Part 2](#) [Part 1](#) [Part 0](#)

Most of the things we've talked about in this series have been things that Congress made for one purpose or another, and added to the Standing Rules of whichever Chamber they exist in. Unlike the Speaker, there's no mention of Steering Committees or a House Majority leader in the Constitution, the House made them up on its own.

What makes the Filibuster weird is that it's kind of the opposite of that: it doesn't exist because the Senate decided to create a Standing Rule, it exists because the Senate decided to abolish a Standing Rule. This is gonna be a wild ride, buckle up.

Quorum

Quorum is the minimum number of people needed to do business. In the Senate it's 51. Sometimes there aren't 51 on the Floor, but the Chamber agrees to establish Quorum because sometimes people are really close by and they can just hop on in if they're needed. At this point if 51 Senators are on the North side of the Capitol, that's enough to achieve Quorum.

What the Filibuster Really Is

I'm pretty sure Thomas Jefferson (and most of the early American Senators for that matter) wanted to have been an MP at some point, because his book *A Manual of Parliamentary Practice for the Use of the Senate of the United States* shows how operations within the early Senate were pretty blatantly copy-pasted from the House of Commons.

One of these things that we ripped off was called "Calling for the Question," a motion to end debate on a subject and put it to a vote. Aaron Burr, of all people, thought "this is dumb," and spent years complaining about how the Senate should get rid of it. In 1806, the Senate got rid of it.

From this point forward, a bill could go into Filibuster.

Why'd I phrase it like that? Well, I want to explain something that I didn't do a great job of in the Introduction to the Senate post from last time:

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On the House side, one thing that the Chamber has to vote on that isn't a bill is the Rule of consideration for a bill, we went over that in [the 101 post](#). The Majority Leader says "this bill is going here on the Congressional Calendar and this is the Rule it'll follow." Most of the time that's a Special Rule, written by the House Rules Committee and adopted (through a vote) by the House itself. Not to be a broken record but these Special Rules say "we'll talk about this for this many days, and everyone has this many minutes to say what they want, and then we'll vote on this day, blah blah blah."

These things don't exist in the Senate. Over here, for most of American history the presiding officer and the Majority Leader would have to go in on every bill and say "Hey guys, is anyone still talking about this?" and if someone says "No way man I still have to get this out," then the bill stays on the floor. As a matter of fact, they still have to do that, nowadays they just don't have to listen to every individual person who says "No wait."

In my last post I wasn't very clear about this because to be honest with you all I got a few things mixed up. See "unanimous consent" (lowercase letters) means anything that the entire chamber agrees to. "Unanimous Consent" (capital letters) in the Senate is the circumstance in which that vote happens on the head check where the presiding officer asks "hey is anyone still talking about this?" and everyone says "yes" or at the very least doesn't answer. "No" is the magic word here, if somebody says "no" then cloture has to be invoked.

Most bills move to a vote through the process of Unanimous Consent. I said that in the last post, but now you have a clearer understanding of what that means. It's not that every Senator is saying "yes, let's pass this," instead every Senator is saying "yes, we're done talking about this." Now mix that interaction with what I said last time, most bills that pass in the Senate are brought to the vote through Unanimous Consent. Think about what kind of legislation that would be.

And now, the moment you've all been waiting for. **What is a Filibuster?** A Filibuster is what happens when the presiding officer of the Senate says "Hey guys, are we done talking about this?" and somebody says "No." It's kind of a hole we dug in the ground in 1806 that we've been using planks to cross instead of filling it in with dirt. It's not a Rule, it's the absence of a Rule (at least in its inception).

We've found ways to get around the Filibuster, in fact you could make the case that cloture is a roundabout "Call for the Question" with an interestingly high requirement to pass. If you think about cloture in the context of the House's Special Rules then you realize how ridiculous that 3/5 requirement is. The House can adopt and change Standing Rules and Special Rules with 50%+1, and the Senate can adopt and change Standing Rules (the things that are supposed to be more hard-coded) with that same 50%+1, but the Senate's version of a Rule on Debate needs 66%? How the hell does that make any sense?

Two Tracking

In the 60s the filibuster really dropped a wrench in the Senate's engines because everybody wanted to stall civil rights legislation. Mike Mansfield, legend that he was, devised a system that would let two main motions be considered simultaneously as long as there was unanimous consent (lowercase letters) for it. This made filibusters a politically easy tool for Senators to use, because they wouldn't be the asshole who stopped the train just to admire the scenery, they'd just be the asshole who stood in the middle of one track with a completely separate track that everyone could get on if they had other places to be. Remember this.

Cloture in Practice

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1. 16 Senators sign a cloture petition that says "We, the undersigned Senators, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, hereby move to bring to a close the debate upon [whatever the fuck these guys want to stop talking about]."
2. The petition is immediately presented on the Floor (it can even interrupt other people speaking) and read by the clerk.
3. The petition "lies over" (sits around collecting dust) until the second calendar day when the Senate is in session. This can also be called "ripening," I'll talk about this more in a bit.
4. The Senate votes on the petition one hour after it convenes on the second calendar day after the petition was filed and after a Quorum Call has established the presence of a Quorum. This timing and the Quorum requirement can be changed with unanimous consent (lowercase letters).
5. The presiding officer presents the petition at the time that it's required to be presented no matter whatever other business is going on.
6. The vote takes place.

The standard majority required here to invoke cloture is 3/5 of the "*Senators duly chosen and sworn*." So that's every Senator who's currently a Senator, not just everybody who's bothered to show up to work. If there aren't any vacancies in the Senate with 50 states, the magic number is 60. Invoking cloture on a measure or motion to amend the Senate's standing rules requires 2/3 of the Senators *present and voting* (so at maximum if everyone shows up to work and votes the magic number is 67). Since 2013 for Executive nominations and 2017 for Judicial nominations, a simple majority (50%+1) of all the Senators present and voting are needed to invoke cloture on that kind of business.

See anything interesting here? Only one of these categories (and the biggest one) has a hardwired number tied to the chamber membership and not the number of voting Senators. Keep that in the back of your head for later.

Inside Congress has mixed reviews among Hill staff, and I have to admit it has a lot of shortcomings, but I really like it. That's thanks (in part) to the book's methodology in their section on cloture, just painting the picture through examples. I'll do the same here, but with more profanity in my words, and hatred in my heart.

Here are a set of base assumptions for this exercise:

1. There's a bill on the Senate Floor to be considered on Monday
2. Some Senators don't like this bill, other Senators want to vote on it
3. Those Senators tell Senate Leadership how they feel about this bill

That last part is important, because it isn't necessary. Some Senators might just keep their hatred to themselves, and the impatient folks might have to try and move on a cloture motion on their own. Rare, but possible.

If these guys are in a cooperative mood and they tell Senate Leadership, the Majority Leader has a few options at his disposal, specifically they have the opportunity to follow one of these timelines I'll explain in a minute, or even circumvent the entire traditional process by striking up deals with the Senators that are keeping the bill in Filibuster. Remember how last time I said the Senate is all about making informal deals? Well it still is, even in situations like this.

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simultaneously take something out of a bill and replace it with something else. If a motion for cloture lines up with a substitute amendment that's in place to make a bill more appealing the timeline looks like this:

Day 1: Cloture motions are filed on both the substitute amendment and on the underlying bill that it'll amend (in that order).

Day 2: Nothing special happens.

Day 3: The motion for cloture on the substitute amendment ripens one hour after the Senate convenes. They're voted on in order, substitute amendment first, underlying bill second.

If the first motion passes then cloture is invoked and there's 30 hours of debate left before an adoption vote (which only requires 50%) on the substitute amendment.

Day 3+30 hours of debate: Immediately after the adoption vote on the substitute amendment, the cloture vote on the underlying bill ripens. Cloture can be invoked another time for 60 votes, which gives debate on the bill a 30 hour time limit again until an adoption vote has to be held.

If cloture is not invoked on the first motion (the one for the substitute amendment), the second motion for cloture (the one on the bill itself) immediately ripens.

Things are more standard when you consider *cloture on a privileged vehicle*. Couldn't tell you the definition of a privileged vehicle even if I fucking wanted to, but I know conference reports fall in this category. Here's what it looks like:

Day 1: Cloture is filed on a conference report.

Day 2: Nothing special happens.

Day 3: One hour after the Senate convenes the motion for cloture ripens. Just like everything else, that starts a 30 hour timer for adoption of the report by simple majority.

Now just remember the Senate is working on other business on days 1 and 2 (and if they have the time they might work on other things on day 3). Between the invocation of cloture and the adoption vote, though, all attention has to be paid on whatever the hell they just invoked cloture on unless the Senate unanimously consents (lowercase) to work on something else.

Debate rules change in this time period too, none of the disorganized nonsense you usually see. Individual Senators can only control one hour of debate naturally and up to 3 hours if two of those hours are yielded onto them by the Majority or Minority Leadership.

Oh and if cloture isn't invoked then technically a bill can be in debate for a maximum of two years (because numbered Congresses only exist for 2 years, and after a new one is sworn in bills have to be reintroduced for consideration).

The Art of the Deal

Most of the time during the cloture process a deal surrounding cloture comes together. If a bill has definitive support then the Senators who put it into filibuster will just throw up their hands and say "alright, it's getting

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Maybe, if during the cloture debate, nobody seeks to speak, any individual member with 11 friends in the chamber can call for the adoption vote.

Maybe, Senate Leadership makes a deal individually with the Senators who didn't like the bill (saying "hey buddy, stop holding this up and I'll get my party to not hold that thing you like up"). After that the Senators with the problem can allow a consent agreement and a passage vote.

Maybe there's no deal at all.

Conclusion: "Let's get rid of the Filibuster"

Getting rid of the filibuster is like getting rid of a hole in the ground. You aren't really getting *rid* of anything, you're *adding* something to a negative to make everything nice and even again.

So what exactly should we add to fill the hole? Much like dirt or gravel or concrete have their benefits and drawbacks, the way we fill the hole that is the filibuster has a few important stipulations for us to consider.

Different ways to fill this hole (in order of how likely I think they'd possibly be imposed) include:

- Changing the requirements for cloture on bills to require a "yea" from 3/5 of the Senators **present and voting**;
- Changing the requirements for cloture on bills to **1/2** of the Senators chosen and sworn;
- Getting rid of the two-track system, and;
- Imposing rules of debate around bills in the same way the House does it.

Personally, I like the "1/2 of the Senators chosen and sworn" plan because that's what everyone thinks when they imagine getting rid of the filibuster, and it's what happened with Nominations. It's the natural next step.

I despise the idea that the Senate would copy the House's debate rules approach, that nonsense might be great when you're herding cats on the South side of the Capitol but the Senate's a different place.

What do you guys think?

Edit: Remember when I said these were unedited? Another lie. But thanks for the awards guys

↑ 173 ↓ 23

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FireDistinguishers OP · 5y ago

Hey [u/Lord_of_your_pants](#) here's the filibuster post you wanted

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The Senate is going to take me like 7 posts to get through at this rate

**Peacock-Shah** • 5y ago

Well done!

**FireDistinguishers OP** • 5y ago

Ah I appreciate it man

**MrSomeone556** • 5y ago

!ping BESTOF

**Th3_Gruff** • 5y ago

Woop woop I love this effpost series

**FireDistinguishers OP** • 5y ago

Ah you guys are too nice

**groupbot** • 5y ago • Edited 5y ago

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**[deleted]** • 5y ago

Would just going back to "Calling for the Question" fix things? Or is it too late to go back?

**FireDistinguishers OP** • 5y ago

I didn't make much of a point of it in the point but I alluded to how Calling for the Question is basically cloture but with a simple majority, so yeah actually I think it'd be the best thing to do.

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Despite his flaws Aaron Burr was a cool dude. Immigrant lover, abolitionist, and one of the first advocates for women's rights and female suffrage.



RoyGeraldBillevue • 5y ago

But we can't risk the Senate passing anything bad. Unless it's budget related then they can pass things with 50+1.



AutoModerator MOD • 5y ago

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Healingjoe • 3y ago • Edited 3y ago

Since 2013 for Executive nominations and 2017 for Judicial nominations, a simple majority (50%+1) of all the Senators present and voting are needed to invoke cloture on that kind of business.

I don't understand. How were these rule changes were both done with less than 2/3 of the Senate?

and the Senate can adopt and change Standing Rules (the things that are supposed to be more hard-coded) with that same 50%+1, but the Senate's version of a Rule on Debate needs 66%? How the hell does that make any sense?

Doesn't the [Nuclear option](#) get around this 2/3 requirement? Wiki says yes:

The use of the nuclear option to abolish the 60-vote threshold for cloture on legislation has been proposed, but not successfully effected.



FireDistinguishers OP • 3y ago

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You answered your own question, they used rule 20



TrekkiMonstr • 2y ago

With the two-track system, you said it requires unanimous consent to consider something else. Does that mean a single Senator with a vendetta against the filibuster could just always vote no on motions to [move to another track, whatever it's called], forcing the Chamber to deal with the filibuster? In effect, getting rid of the system with it still on the books.



FireDistinguishers [OP](#) • 2y ago

That's a really good question that honestly I've never thought about

Maybe? I need to think through that tbh



[deleted] • 5y ago • Edited 10mo ago

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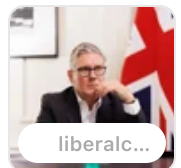
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6) Dissolution of the Union. A nation which can't even restrict who gets to be a citizen isn't a nation.

7) Amend the Constitution. This is pointless, because once a judge decides he can rewrite the Constitution at will (as Roberts and Sotomayor did today), the actual text is meaningless. But this is what most GOP politicians gravitate towards because they are useless.

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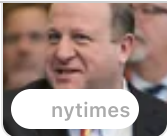
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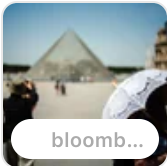
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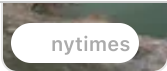
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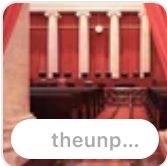
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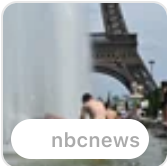
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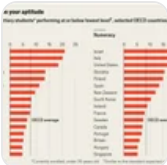
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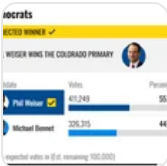
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